First, the process and methods deployed by the committee in its investigations were questionable. The committee travelled 'in a convoy of ten four-wheel drives and an anti-mine tank, preceded by road clearing exercises'.[11] This modus operandi made it impossible for the Adivasi to come forward and speak truthfully to the committee. The committee therefore came across many 'deserted villages in which people had run away'.[12] Second, the committee made some outright errors in planning the investigation – in some instances, for example, visiting a village with the same name as the village they were meant to visit.[13] Third, the committee often accepted the police's version of events (which was invariably sympathetic to Salwa Judum) uncritically, compromising on its own mandate as a fact-finding body.

Despite these problems with the investigation undertaken by the committee, there were still some disturbing findings in the report, which the Supreme Court caught on to. In particular, the court was anxious about the statement in the report that in some cases, no FIRs had been lodged by the police following killings by Salwa Judum in the state. It therefore directed the government of Chhattisgarh to ensure that FIRs were filed in such cases, and that an inquiry by a magistrate be ordered as and when a corpse was located. The government was asked to file an 'action taken' report to confirm compliance with the court's directions. The committee had also made recommendations on how to address the human rights violations in Chhattisgarh. In respect of those recommendations, the chief justice told the advocate for the government of Chhattisgarh: '[i]t is very painful to read the report . . . Whatever is urgently required to be done, do it.'[14] At least as far as the Supreme Court was concerned, this was hardly a 'thumbs up' for Salwa Judum.

A few months later, it was brought to the court's attention that the state government was not complying in full with the NHRC recommendations – filing FIRs, initiating magisterial investigations of deaths and redressing human rights violations. It was also alleged that the state government was supplying arms to members of Salwa Judum – an allegation the government 'denied emphatically'.[15] By this stage – now close to three years since the